

Pre-Tenancy Compliance Checklist

Scotland

42 Warrender Park Road, Edinburgh, EH9 1EU

FILE-USE NOTE

Use this checklist as the landlord's setup record before move-in. Tick each item when the evidence is complete, note the completion date, and keep the finished checklist with the agreement, handover records, and compliance documents for the tenancy.

It is a practical file tool, not the agreement itself. If a requirement is unusual, disputed, or unclear, verify the point before relying on the file as complete.

1. Landlord Registration (Mandatory)

☐

Registered with local authority

All private landlords must be registered with their local council. Registration number must be provided to tenants.

Antisocial Behaviour etc (Scotland) Act 2004

2. Deposit Protection (Mandatory)

☐

Deposit protected within 30 working days

Tenancy deposits must be protected in an approved scheme within 30 working days and tenant notified.

Tenancy Deposit Schemes (Scotland) Regulations 2011

3. Repairing Standard

☐

Property meets the Repairing Standard

The property must be wind and watertight, in reasonable repair, have satisfactory heating, and meet safety requirements.

Housing (Scotland) Act 2006, s.13

4. Gas Safety

☐

Valid Gas Safety Certificate

Annual gas safety check. Certificate provided before occupation.

Gas Safety (Installation and Use) Regulations 1998

5. Energy Performance Certificate (EPC)

☐

Valid EPC with minimum E rating

EPC must be provided and meet minimum energy efficiency standards.

Energy Performance of Buildings (Scotland) Regulations 2008

6. Electrical Safety (EICR)

☐

Satisfactory EICR obtained

Electrical installation inspected every 5 years. Report provided to tenant.

Private Housing (Tenancies) (Scotland) Act 2016

7. Fire Safety

☐

Interlinked smoke and heat alarms installed

Since February 2022, all homes must have interlinked fire alarms: smoke alarms in living rooms, hallways, landings; heat alarm in kitchen; CO alarm where required.

Housing (Scotland) Act 2006 (as amended)

8. Legionella Risk Assessment

☐

Risk assessment completed

Landlords should assess the risk of Legionella in the water system and take appropriate action.

HSE Guidance L8

Summary Checklist

Requirement	Status	Date Completed
Landlord registration	☐ Yes ☐ N/A	_____
Deposit protected	☐ Yes ☐ N/A	_____
Deposit info provided	☐ Yes ☐ N/A	_____
Gas Safety Certificate provided	☐ Yes ☐ N/A	_____
EPC provided (rating: ____)	☐ Yes	_____
EICR provided	☐ Yes	_____
Smoke alarms tested	☐ Yes	_____
CO alarms tested (if applicable)	☐ Yes ☐ N/A	_____
HMO licence (if applicable)	☐ Yes ☐ N/A	_____

Final check: The tenancy file should only be treated as ready when the completed checklist, the supporting evidence, and the signed agreement all match each other.